

MEMORANDUM TO THE BOARD OF TRUSTEES

Village of Tuxedo Park, New York

WORKING DRAFT FOR THE BOARD AND VILLAGE COUNSEL - NOT LEGAL ADVICE

To: Board of Trustees, Village of Tuxedo Park

From: David C. McFadden, Village resident and taxpayer

Date: 6/14/2026

Re: Proposed clarification of Chapter 51 (Films and Movie Making)

I respectfully submit the attached draft local law for the Board's consideration. It reflects a policy recommendation, not a neutral legal opinion or a finished legislative product. Its purpose is to identify the choices presented by Chapter 51, offer one possible framework, and give the Board and Village counsel a concrete text to evaluate, revise, or reject.

The official Village record controls on every question of fact, and Village counsel should confirm the draft's legal form, its relationship to the existing Code, the required adoption procedure, and any environmental or county-planning review before the Board takes action.

1. The policy question

Chapter 51 requires prior written permission from the Board for filming and restricts activity undertaken as a business or for commercial gain, but it does not define "commercial gain" or provide detailed standards or a decision schedule. That language can reasonably support more than one reading.

One reading: compensation paid to a homeowner for the use of private property is commercial gain, making commercial filming impermissible unless another Code provision supplies authority.

Another reading: the restriction is principally directed at commercial use of Village or public space, while allowing the Board to consider a limited production contained on private property if its effects can be controlled.

The attached draft adopts the second, conditional-permit approach. The Board may instead prefer a bright-line prohibition. Either policy can be stated more clearly than the present language. My principal recommendation is that the Board choose and state the rule expressly, so residents, applicants, and future Boards know how a request will be evaluated.

Under the attached approach, the Code would:

- define the terms used to evaluate commercial and private-property filming;
- allow the Board to approve or deny contained private-property filming based on documented impacts;
- retain existing noise, lighting, access, fire, tree, traffic, waste, and restoration requirements unless a lawful and narrowly drawn exception is approved;
- permit conditions concerning hours, crew and vehicle limits, insurance, restoration, security, inspections, and applicant-paid public-safety services;
- provide a written decision within a stated period, subject to a limited extension; and

- preserve relevant public comment while requiring the final determination to rest on the adopted standards and reliable evidence.

2. Background informing the proposal

A recent filming request brought these questions into focus. Based on information available to me, a production associated with Sony/Netflix sought permission to film a period drama at a single private residence. The request was time-sensitive and reportedly included a proposed contribution of \$30,000 to the Village. Village counsel and counsel for the production reportedly discussed possible terms, including how compensation for temporary use, alteration, and restoration of the property might be treated under Chapter 51. The matter was not resolved by a recorded Board decision before the production's scheduling deadline, and the production proceeded elsewhere.

I offer that account only as context, not to assign fault or to establish disputed facts. The Board and Village counsel have access to the official record and should correct or omit any point that the record does not support. The episode is relevant because it illustrates the practical difficulty of applying an undefined term under a fixed production schedule.

Separate approvals may also have been implicated by proposed physical changes to the property. The proper sequence and jurisdiction of the Board of Architectural Review, Planning Board, Zoning Board of Appeals, Building Inspector, and Board of Trustees should be confirmed by Village counsel. The draft attempts to separate the Chapter 51 decision from other required approvals while making the exercise of any filming permit conditional on obtaining them.

There is also prior Village practice supporting a narrower interpretation of "commercial gain." During my service as Mayor, the Village permitted filming for *The Real Housewives of New York City* on a resident's property, with the concurrence of the Village attorney at that time. I disclose my role because that prior decision should not be treated as independent legal authority. It does, however, show that the language has been understood differently at different times, which supports clarifying it prospectively.

3. Questions for the Board and counsel

The attachment is intended to make the following choices visible rather than prejudge them:

- Should Chapter 51 prohibit commercial filming on private property, or allow it under a conditional permit?
- What compensation should count as commercial gain, and whose gain should be relevant?
- What measurable impacts, notice requirements, and operating limits should govern a permit?
- How should the Board receive and weigh comments from neighboring owners and other residents?
- What decision period is workable for the Village and applicants?
- Which other Village approvals and inspections remain independently required, and in what sequence?
- What costs, insurance, indemnification, restoration security, and public-safety services should the applicant provide?

4. Requested next step

I ask only that the Board consider whether Chapter 51 should be clarified and refer the attached draft to Village counsel for review. After counsel's review, the Board could discuss the policy choices, revise the text, and, if it wishes to proceed, introduce a local law and schedule the public hearing required for its adoption. Counsel should also determine whether referral under General Municipal Law § 239-m applies and advise the Board on the appropriate SEQRA classification and process.

I welcome correction of any factual statement and revision of any policy or drafting choice. The attached language is offered as a starting point to support an open, orderly, and legally informed discussion.

ATTACHMENT A - MOTION AND PROPOSED LOCAL LAW

The complete working draft follows. Bracketed language identifies choices for the Board and Village counsel. The text should be conformed to the current Village Code and applicable law before introduction.

Decision points for the Board and Village counsel

1. Policy approach: conditional permitting of contained private-property filming, or a bright-line prohibition.
2. Definition of commercial gain, including treatment of compensation paid to a property owner.
3. Decision period: drafted at [60] days after an application is deemed complete.
4. Consequence of Board inaction: optional deemed-denied language remains bracketed.
5. Operating limits: crew, vehicles, hours, and annual shoot days remain bracketed.
6. Public participation: comments may come from any interested person, while findings must address the adopted criteria and reliable evidence.
7. Noise and lighting: existing limits remain the default; any temporary-hardship waiver is optional and subject to counsel's confirmation of authority.
8. Technical review and applicant-paid safety services: confirm the roles of the Board, Building Inspector, police, fire department, and electrical inspector.

PART 1 - Motion / Resolution to Introduce the Local Law

To be moved by a Trustee at a regular or special meeting of the Board of Trustees, seconded, and entered in the minutes.

Title of action. A Resolution introducing Proposed Local Law No. [___] of 2026 amending Chapter 51 of the Code of the Village of Tuxedo Park and scheduling a public hearing.

WHEREAS, Chapter 51 of the Village Code ("Films and Movie Making") requires prior written permission from the Board of Trustees for filming and photography in the Village, but does not define "commercial gain" or establish detailed standards or a decision period;

WHEREAS, the existing language may reasonably be read in different ways, and a recent time-sensitive request illustrated the value of a clearer process and a recorded decision;

WHEREAS, the Board wishes to protect the Village's roads, security, privacy, safety, and tranquility while deciding expressly whether, and under what conditions, filming confined to private property may be permitted;

WHEREAS, subject to review by the Village Attorney, amendment of the Village Code is authorized by the Municipal Home Rule Law and the Village Law of the State of New York;

NOW, THEREFORE, BE IT RESOLVED as follows:

1. The Board of Trustees hereby introduces Proposed Local Law No. [___] of 2026, in the form annexed as Part 2 hereto.
2. A public hearing on the proposed local law shall be held on [date] at [time] at [Village Hall / location], at which all interested persons will be heard.

3. The Village Clerk shall publish and post notice of the public hearing and make copies of the proposed local law available in accordance with Municipal Home Rule Law § 20 and other applicable requirements.
4. The proposed local law is referred to the Village Attorney for review as to form and legality and, if General Municipal Law § 239-m applies, to the Orange County Department of Planning before final action.
5. Before final action, the Board shall complete the review required by the State Environmental Quality Review Act, with the Village Attorney advising the Board on the appropriate classification and procedure.

PART 2 - Proposed Local Law No. [___] of 2026

A LOCAL LAW amending Chapter 51 of the Code of the Village of Tuxedo Park, entitled "Films and Movie Making," to define "commercial gain," establish standards and a timely process for filming permits, and authorize the conditional approval of filming wholly contained on private property.

Be it enacted by the Board of Trustees of the Village of Tuxedo Park as follows:

Section 1. Legislative intent.

The Board finds that Chapter 51 protects important Village interests but leaves the term "commercial gain" undefined and provides no detailed standards or decision period. The purpose of this local law is to (a) define "commercial gain"; (b) specify whether filming wholly contained on a private parcel may be approved subject to conditions; (c) provide a process for a clear, recorded, and timely decision; (d) require decisions to rest on the standards in this chapter and relevant, reliable evidence; (e) coordinate this chapter with other applicable provisions of the Village Code; and (f) designate the Board of Trustees as the approving authority for the Chapter 51 permit while preserving all separately applicable reviews, permits, and inspections.

Section 2. Definitions.

Section 51-1 of the Village Code is amended to add the following definitions:

"Filming" means any filming, taping, video or audio production, broadcasting, photography, or aerial photography (other than aerial surveying), as already regulated by this chapter. Aerial photography by any unmanned aircraft is governed by this chapter regardless of the aircraft's weight; an unmanned aircraft whose takeoff weight exceeds five pounds is additionally subject to Chapter 27 (Aircraft).

"Shared or public space" means Village roads, Village property, and any place to which the public is admitted or drawn, as distinct from the interior and grounds of a single private parcel.

"Contained private-property filming" means Filming conducted wholly within the boundaries of a single private parcel, with no staging, parking, loading, equipment, generators, or production activity on any Shared or public space, and with no public attendance.

"Commercial gain" means revenue or profit derived from the use of Shared or public space, or from public-facing activity that draws or admits the public. A property owner's receipt of compensation for the temporary use, alteration, and restoration of the owner's own premises, where the activity is Contained private-property filming, shall not by itself constitute "commercial gain," nor activity "undertaken as a business," within the meaning of this chapter.

"Immediately affected neighboring property" means a property that adjoins the parcel on which the Filming will occur or that is demonstrably subject to noise, light, traffic, access, security, or similar effects from the proposed activity.

"Complete application" means an application containing all information and materials the Board reasonably requires to evaluate the standards in Section 3, as set forth on a Village application form.

Section 3. Permit standard; conditional approval of contained private-property filming.

Section 51-1 is further amended to provide that the Board of Trustees may issue a permit, with conditions, for Contained private-property filming where the Board finds that the activity, as conditioned, will not:

- burden or obstruct Village roads or Village property;
- cause an actual and material intrusion upon the privacy, safety, or tranquility of any Immediately affected neighboring property, judged by objective effects such as noise, light, traffic, or interference with access;
- compromise Village security or emergency access; or
- draw, admit, or invite the public.

In approving a permit, the Board may impose any conditions reasonably necessary to protect those interests, including without limitation:

- No staging, parking, loading, catering, wardrobe, makeup, equipment storage, generators, or production activity on any Shared or public space unless expressly approved.
- No public ticketing, public attendance, tours, open calls, sales, auctions, or public-attracting events.
- Limits, stated in the permit, on crew size [no more than ____], vehicles [no more than ____], daily hours, and total shoot days [no more than ____ per calendar year]. Production noise and exterior lighting shall comply with § 70-6 (noise) and § 100-21.1 (exterior lighting), except to the extent the Board grants an express, limited waiver under Section 4-A.
- Written notice to immediately affected neighbors in advance of any approved activity.
- Insurance, indemnification, and a restoration bond or escrow sufficient to return the premises to their prior condition — to the standard of Chapter 75 (Property Maintenance) and including removal of all production waste under Chapter 58 — together with a security plan, a traffic plan, and emergency-access review where appropriate.
- Payment by the applicant for any public-safety services the production makes necessary, as the Board may require, including (i) police traffic control or escorts; (ii) fire inspection of temporary structures and production operations, the fee for which may be made payable directly to the Tuxedo Park Fire Department; (iii) electrical inspection of temporary wiring, generators, and distribution by a licensed electrical inspector or electrical inspection company approved by the Village; and (iv) fire-watch standby, including stationing a fire apparatus on or near the site. The required services shall be stated in the permit, and all such costs are borne by the applicant.
- No aerial photography except as permitted under this chapter and, where applicable, Chapter 27; no pyrotechnics, open flame, or fire effects except under Chapter 53; no simulated firearms except as Chapter 70 allows; and no road closures, devices in the right-of-way, or special effects without separate written approval.
- Immediate stop-work authority if any condition, or the privacy, safety, or tranquility of residents, is violated.

[Alternative policy choice: If the Board prefers to prohibit all commercial filming in the Village, including filming on private property, Section 3 should instead state that prohibition clearly. This working draft presents the conditional-permit approach so that the Board can evaluate it against that alternative.]

Section 3-A. Basis for decision; public participation.

- (a) The Board's decision shall rest on findings under the standards in Section 3, entered in the minutes.
- (b) The Board of Trustees shall make the permit determination in the manner authorized by law. The number of persons supporting or opposing an application shall not substitute for findings under the adopted standards.
- (c) The Board may receive relevant information from neighboring owners, other residents, the applicant, Village officials, and other interested persons. In evaluating that information, the Board shall consider its relevance, reliability, and connection to the standards in Section 3, with particular attention to demonstrated effects on nearby property, Village roads, security, public safety, and emergency access.
- (d) Unless otherwise required by law, no separate public hearing is required for an individual permit. The Board shall act at a regular or special meeting on the record. If the Board receives public comment, its determination shall remain based on the standards in Section 3. [Village counsel to confirm the required procedure.]

Section 4. Timely decision; relationship to property-alteration approvals.

- (a) Within [60] days after the Board determines that an application is a Complete application, the Board shall issue a written decision granting, granting with conditions, or denying the permit and shall state the reasons for its decision in the minutes.
- (b) The Board may consider the Chapter 51 filming permit separately from any approval required for a proposed physical alteration of the property. A filming permit may be conditioned on the applicant obtaining every other required approval before the permit is exercised. If no physical alteration or other regulated activity is proposed, only the approvals otherwise required by law shall apply. [Village counsel to confirm the jurisdiction and sequence of any review by the Board of Architectural Review, Planning Board, Zoning Board of Appeals, Building Inspector, or other Village body.]
- (c) The Board may, by resolution, extend the period in subsection (a) once, for a stated reason and a stated number of additional days, with the applicant's consent.

[Optional finality clause: "If the Board fails to render a decision within the period required by subsection (a), as extended, the application shall be deemed denied, and the applicant shall be entitled to a written statement of the reasons and to any appeal available by law." Include only if the Board wants inaction to carry a defined consequence.]

Section 4-A. Relationship to other Village ordinances; hardship waivers; approving authority and technical review.

- (a) Default compliance. Filming shall comply with all other applicable chapters of the Village Code, including § 70-6 (noise) and § 100-21.1 (exterior lighting). A filming permit does not waive or supersede another chapter except where a waiver is expressly authorized by law and granted under subsection (c).
- (b) Without limitation, Filming may be subject to: Chapter 25 (access to the Village and use of Village roads and gates); Chapter 70, § 70-6 (noise); Chapter 100, § 100-21.1 (exterior lighting); Chapter 27 (aircraft); Chapter 40 (clearing, filling, grading, and excavating); applicable review of exterior alterations and tree removal; Chapter 53 (fire, open flame, and fire effects); Chapters 76, 83, and 94 (rights-of-way, streets, vehicles, and traffic); Chapter 65 (lakes and ponds); Chapters 58 and 75 (waste and property

maintenance); and Chapter 73 (permit procedures and fees). [Village counsel should conform these references to the current Code.]

(c) Temporary-hardship waiver. Filming shall initially conform to the noise hours of § 70-6 and the exterior-lighting limits of § 100-21.1. To the extent permitted by law, the Board may grant a waiver of those limits only (i) upon a showing of temporary hardship specific to the production; (ii) for a stated, limited period; and (iii) after finding on the record that the waiver will not cause a material intrusion upon an Immediately affected neighboring property under Section 3. A waiver shall state its exact dates, hours, and limits and shall be no broader than necessary.

(d) Approving authority; technical review. The Board of Trustees is the approving authority for a permit under this chapter. That designation does not displace any review, permit, inspection, or enforcement responsibility imposed by another applicable law. The Building Inspector shall review the applicant's plans for temporary structures and electrical generation and distribution and advise the Board whether separate building, fire, electrical, or other permits or inspections are required. [Village counsel should confirm the respective authority of the Board, Building Inspector, and other reviewing officials.]

(e) Electrical inspection. Where required by applicable law or imposed as a permit condition, temporary electrical wiring, generators, and distribution serving the production shall be inspected by a licensed electrical inspector or electrical inspection company approved by the Village, at the applicant's expense, before energized use.

(f) Where another chapter and this chapter both apply and no lawful waiver is granted under subsection (c), the more protective standard governs. Permit fees under this chapter shall be set by resolution of the Board of Trustees pursuant to Chapter 73.

[The default is compliance with existing noise and lighting limits. Subsection (c) presents an optional, narrowly limited waiver, subject to counsel's confirmation that the Board has authority to grant it. Subsection (d) makes the Board the approving authority only for the Chapter 51 permit and preserves other legally required reviews and inspections.]

Section 5. Single-family exception preserved and clarified.

Section 51-2 is amended to confirm that ordinary, occasional, non-commercial filming undertaken by a single-family unit wholly within its own premises remains exempt and requires no permit; and to clarify that activity which does not qualify for this exception is subject to the permit requirement and standards of Section 51-1, and is not, for that reason alone, prohibited.

Section 6. Severability.

If any provision of this local law is held invalid, that holding shall not affect the validity of the remaining provisions, which shall remain in full force and effect.

Section 7. SEQRA; effective date.

Before adopting this local law, the Board shall complete the review required by the State Environmental Quality Review Act and make the determination required by law. This local law shall take effect upon filing with the New York Secretary of State in accordance with the Municipal Home Rule Law.

This working draft is offered to inform public discussion and Board deliberation. It is not legal advice. The Village Attorney should review and revise it before introduction, conform it to the exact current text of Chapter 51 and related Code

provisions, and confirm all procedural, referral, hearing, inspection, enforcement, and environmental-review requirements.